

Motion Picture (Production, Exhibition and Distribution) Act, 1969

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Cinema (Production, Exhibition and Distribution) Act, 2026

Royal Seal and Date of Publication

2026.5.19

Amending Acts

1. Judicial Administration Reform Act, 2031 2031.4.18
2. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
3. Cinema (Production, Exhibition and Distribution) (First Amendment) Act, 2048 2048.8.4
4. Act to Amend Certain Nepal Acts Relating to Communications, 2055 2055.3.10
5. Act to Amend Certain Nepal Acts Relating to Communications, 2057 2057.10.18

Certification and Publication Date

6. Act to Amend Certain Nepal Laws Relating to Consolidation of the Republic, 2066 2066.1.17
7. Act to Amend Certain Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072 2072.6.14
8. Act to Amend Certain Nepal Acts, 2072 2072.11.13
9. Act to Amend Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 15 of the year 2026

Act Made to Regulate Cinema Production, Exhibition and Distribution

Preamble: Whereas it is expedient to regulate the production, exhibition and distribution of cinema in Nepal omitted by the Act to Amend Certain Nepal Laws Relating to Consolidation of the Republic, 2066. for the convenience of the general public;

Therefore, this Act is made and enacted by His Majesty King Mahendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Cinema (Production, Exhibition and Distribution) Act, 2026".

(2) This Act shall extend to the whole of Nepal omitted by the Act to Amend Certain Nepal Laws Relating to Consolidation of the Republic, 2066..

(3) This Act shall commence immediately. 2. Definitions: In this Act, unless the subject or context otherwise requires,-

(a) "Cinema Scrutiny Committee" means a committee formed pursuant to Section 7.

(b) "Cinema House" means the principal building where cinema is exhibited and also includes other buildings and lands attached to that building.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act. 3. License Required for Cinema Production, Distribution and Exhibition: (1) No person shall produce, distribute or exhibit the following types of cinema without obtaining a license from the Government of Nepal or an authorized official designated by the Government of Nepal:-

(a) Feature films, and

(b) Other types of cinema as prescribed from time to time by the Government of Nepal by publishing a notice in the Nepal Gazette.

(2) The format of the application for obtaining a license for cinema production, distribution or exhibition pursuant to sub-section (1), the format of the license, the conditions to be fulfilled by the licenseholder, and the fee payable shall be as prescribed.

(3) The duration of a license granted for cinema distribution shall be as prescribed. 4.

License Required for Constructing and Operating a Cinema House: Amended by the Act to Amend Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(1) No person shall construct a cinema house without obtaining a license from the Province Government or an official designated by the Province Government. Added by the Act to Amend Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(1a) After obtaining a license pursuant to sub-section (1), while constructing a cinema house, map approval must be obtained from the relevant Rural Municipality or Municipality. (2) The format of the application to be submitted for obtaining a license to construct a cinema house pursuant to sub-section (1) amended by the First Amendment., the format of the license, the conditions to be fulfilled by the licenseholder, and the fee payable shall be as prescribed. (3) Upon receipt of an application pursuant to sub-section (2), amended by the Act to Amend Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. the Province Government may, in particular, grant a license to the applicant, taking into consideration the following matters as well:- (a) Obstruction or inconvenience that may be caused to any educational institution, hostel, hospital, place of public importance, organization or government office by permitting the construction of the cinema house as per the application amended by the First Amendment., (b) The necessity for such a cinema house based on population, (c) Whether a map of the cinema house has been submitted showing adequate arrangements prescribed for the safety, health and convenience of the audience, (d) Whether such a license may or may not be granted under other Nepali laws. Amended by the First Amendment.5. Obligation to Construct Cinema House: (1) A person who obtains a license to construct a cinema house under this Act shall complete the construction of the cinema house according to the approved map within two years from the date of obtaining the license. Provided, if the person who obtained such a license fails to complete the construction of the cinema house within that period due to any reasonable cause, amended by the Act to Amend Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. the Province Government may extend the period repeatedly up to a maximum of two years. (2) If the person who obtained the license fails to complete the construction of the cinema house within the period specified in sub-section (1), the license obtained by that person shall be deemed automatically cancelled. 6. Inspection of Cinema House: (1) The amended by the First Amendment.

Chief District Officer may, at any time, inquire and inspect whether the necessary arrangements for the safety, health and convenience of the audience have been made in any cinema house under this Act or the rules made under this Act, and whether the prevailing Nepali laws are being complied with while exhibiting cinema. (2) For the purpose of inspection pursuant to sub-section (1), the amended by the First Amendment. Chief District Officer may, at any time, inspect or cause to inspect the cinema house. (3) If it appears that the

necessary arrangements as prescribed for the safety, health and convenience of the audience are not in place in any cinema house, or that the prevailing Nepali laws are not being complied with while exhibiting cinema, the amended by the First Amendment. Chief District Officer may order the closure of such cinema house or the exhibition of such cinema. (4) A person dissatisfied with an order given by the amended by the First Amendment. Chief District Officer under this section may appeal to the Government of Nepal within thirty-five days from the date of such order. 7. Cinema Scrutiny Committee: (1) The Government of Nepal may form one or more Cinema Scrutiny Committees as required to scrutinize whether a cinema is suitable for granting a license for exhibition pursuant to Section 8. Each Committee shall consist of a Chairperson and members as nominated by the Government of Nepal. They shall remain in their positions amended by the First Amendment. for the period specified by the Government of Nepal. (2) The Chairperson and members of the Committee formed pursuant to sub-section (1) shall receive remuneration as prescribed from the person requesting the cinema scrutiny. (3) The Cinema Scrutiny Committee may regulate its own procedure. (4) The Government of Nepal may give such directives as it deems necessary to the Cinema Scrutiny Committee from time to time, and it shall be the duty of such Committee to comply with those directives. 8.

Scrutiny of Cinema: (1) Any person who has obtained a license shall submit an application in the prescribed format to the Cinema Scrutiny Committee before exhibiting any cinema, and the said Committee shall also scrutinize such cinema and may permit or refuse permission as follows:- (a) Grant permission for public exhibition of such cinema without specifying any condition; or (b) Grant permission for public exhibition only after cutting, editing or altering such cinema, or complying with any other conditions or restrictions; or (c) Grant permission specifying the condition that such cinema may only be exhibited publicly to adults who have completed 16 years of age; or (d) Refuse permission for public exhibition of such cinema. (2) Before making a decision to grant or refuse permission under clauses (b), (c) or (d) of sub-section (1), the Cinema Scrutiny Committee shall give the applicant a reasonable opportunity to express their views. (3) If any cinema or any part thereof appears to be of a nature that is prejudicial to omitted by the Act to Amend Certain Nepal Laws Relating to Consolidation of the Republic, 2066. the security, peace and order of Nepal omitted by the Act to Amend Certain Nepal Laws Relating to Consolidation of the Republic, 2066., or to the good relations with friendly states or between different classes or castes, or adversely affects public interest, morality or ethics, or harms the reputation of any particular person, or constitutes contempt of court, or added by the Act to Amend Certain Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072. promotes gender-based violence, or incites the commission of any offense, the Cinema Scrutiny Committee shall not grant permission for the exhibition of such cinema. Provided, if it appears that exhibiting the cinema after cutting, editing or altering a part of it would not be contrary to this sub-section, the Cinema Scrutiny Committee may, as necessary, grant permission for exhibition after such cutting, editing or alteration. (4) If, in the opinion of the Government of Nepal, a cinema for which permission for exhibition has been granted by the Cinema Scrutiny Committee is of a nature that may have an adverse effect as mentioned in sub-section (3), the Government of Nepal may, at any time, order the stoppage of exhibition of such cinema or order its exhibition after cutting, editing or altering as deemed necessary. (5) A person aggrieved by a decision made by the Cinema Scrutiny Committee under this section may submit an appeal to the Government of Nepal within thirty-five days from the date of such decision. 9.

Documentary to be Shown as well: (1) While exhibiting any cinema, it shall be mandatory to play Nepali records at the beginning and during the intermission, and also to show, as far as possible, documentaries relating to scientific discoveries or education, or important current events of national or international importance. (2) The Government of Nepal may order cinema exhibitors who have obtained licenses to exhibit any documentary produced by or received by the Government of Nepal, and it shall be the duty of such

cinema exhibitor to comply with such order. 10. Ticket Rates and Categories: Amended by the Act to Amend Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. The various categories and ticket rates to be fixed in a cinema house shall be as determined by the relevant Province. 10a. Formation of Film Development Board: Added by the Act to Amend Certain Nepal Acts Relating to Communications, 2055. (1) The Government of Nepal shall form a Film Development Board for the development and promotion of the film sector, which shall include representation from persons or organizations associated with that sector as well. (2) The formation procedure and other functions of the Film Development Board formed pursuant to sub-section (1) shall be as prescribed. 11. Powers of Government of Nepal and Province Government: Amended by the Act to Amend Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. (1) If deemed necessary for the security of Nepal or public peace or order, the Government of Nepal may order the cessation of exhibition of any cinema throughout Nepal, and the Province Government may order such cessation within the Province. (2) Before issuing an order pursuant to sub-section (1), a reasonable opportunity shall be given to the concerned person to present their statement. (3) The Government of Nepal may, by publishing a notice in the Nepal Gazette, delegate the powers vested in it under this Act to the Board formed pursuant to Section 10a, a Committee, or any official. 12.

Penalty and Appeal: Amended by the First Amendment. (1) The Chief District Officer may impose a fine of up to five thousand rupees on a person who violates this Act or any rule or order made under this Act, and may also cancel the license obtained by that person. (2) If any person produces, exhibits, or distributes cinema without obtaining a license under this Act, the Chief District Officer may impose a fine on such person as mentioned in sub-section (1) and may also confiscate such cinema and the equipment used in the production, exhibition or distribution of such cinema. (3) An appeal against an order given by the Chief District Officer pursuant to sub-section (1) or (2) shall lie with the amended by the Act to Amend Certain Nepal Acts, 2072. District Court. 13. Power to Make Rules: The Government of Nepal may make rules to carry out the objectives of this Act. 14. Validity of Licenses Granted Before Commencement of this Act: All licenses granted by the Government of Nepal or an official authorized by the Government of Nepal prior to the commencement of this Act relating to cinema production, distribution, exhibition and amended by the First Amendment. construction of cinema houses shall be deemed to have been granted under this Act. Provided, in relation to any cinema house for which a license was obtained prior to the commencement of this Act, if adequate arrangements regarding the safety, health and convenience of the audience are not in place as per this Act or the rules made under this Act, the owner of such cinema house shall have a period of two years from the date of commencement of the rules under this Act to make arrangements for the safety, health and convenience of the audience accordingly.